

Court No. - 21

Case :- WRIT - C No. - 13478 of 2017

Petitioner :- Jaiveer Singh And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Nikhil Kumar Srivastava, Vinit Kumar Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble V.K. Shukla, J.

Hon'ble Ashok Kumar, J.

Jaiveer Singh and Om Prakash are before this Court and their grievance is that they have sanctioned load of 5 H.P. electric connection but the bills in question that are being raised against them is based on the formula of 10 H.P. electric connection.

In pith and substance the petitioners are raising billing dispute and it has been sought to be contended on behalf of Dakshinanchal Viddut Vitaran Nigam through Ms. Surangana Sharma, Advocate holding brief of Sri Baleshwar Chaturvedi, Advocate by contending that on the spot the energy in question that was being consumed, the same was as per 10 H.P. and in view of this there is no infirmity in the bills raised.

The fact of the matter is that such disputed question of fact cannot be decided by this Court and under Electricity Act 2003 read with Electricity Supply Code, 2005, a remedial forum has been provided for settling the dispute pertaining to bill under paragraph 6.5 of the Code and consequently, as far as we are concerned, we are not at all entertaining the writ petition in question but as it has been informed that the matter has already been represented before the competent authority in respect to dispute of bills and arrears, as such the aforementioned competent authority is directed to look into the grievance of the petitioner in accordance with law preferably within next two months from the date of production of a certified copy of this order.

In view of this, the writ petition stands disposed of.

Order Date :- 30.3.2017

S.S.